

		Here, the delegation clause is not overly harsh, and does not sanction one-sided results. “An arbitration agreement imposed in an adhesive context lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or service of transaction or occurrences.” (Id. at 246-247.) The delegation clause in this case does not lack mutuality because both Rivian and Plaintiff are bound by it equally. The arbitration agreement provides that “You and we understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to prevent our claims to a jury and to have claims resolved by a jury trial...” (emphasis added.) As held in Tiri, although the delegation clause is a contract of adhesion and procedurally unconscionable, it is nonetheless valid and enforceable because it is not substantively unconscionable. Accordingly, the Motion is GRANTED, and the action is stayed pending completion of arbitration. Any further issues regarding enforceability are delegated to the arbitrator. The Case Management Conference set for October 12, 2026 is vacated. ADR Review is set for April 26, 2027 at 9 AM. Moving Party shall give notice of all the above.
2	Harris vs. Planned Parenthood Orange and San Bernardino Counties 2023-01350613	1. Motion to Compel Deposition (Oral or Written) 2. Motion to Compel Further Responses to Form Interrogatories 3. Motion to Compel Further Responses to Form Interrogatories 4. Motion to Compel Production

		Plaintiff Kufrrshawnda Harris' Motion to Compel the Deposition of Defendant's Employees, Nancy Espinoza and Denise Garcia; Motion to Compel Further Responses to Plaintiff's Request for Supplemental Responses to Requests for Production of Documents; Motion to Compel Further Responses to Plaintiff's Request for Supplemental Responses to General Form Interrogatories; and Motion to Compel Further Responses to Plaintiff's Request for Supplemental Responses to Employment Form Interrogatories are DENIED as Moot, as Defendant Planned Parenthood Orange and San Bernardino Counties has provided substantive supplemental responses to the disputed written discovery requests and made their employees available for depositions after the filing of the motions. (See Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409 [court's discretion where responses served after motion filed.].) The motions are not moot regarding the issue of monetary sanctions. Service of responses after the filing of a motion to compel does not necessarily render a request for monetary sanctions moot. (See Cal. Rules of Court, Rule 3.1348, subd. (a) ["The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."].) Here, Defendant's failure to timely produce supplemental responses and make its employees available for deposition forced Plaintiff to file these motions. Plaintiff is entitled to recover monetary sanctions to compensate her for the time and resources spent in preparing and filing these motions. Accordingly, Defendant Planned Parenthood Orange and San Bernardino Counties shall pay monetary sanctions in the amount of \$2,510 within 30 days of this ruling.
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3	Whisler vs. General Motors, LLC. 2025-01461222	Motion to Compel Production CCP 871.26 states in relevant part: (a) This section only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20. (b) Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h). (c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: (1) The plaintiff. (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i). (d) Within 90 days after filing of the answer or other responsive pleading, all parties shall schedule a mediation to occur within 150 days after filing of the answer or other responsive pleading with a court-appointed or private mediator. ... (e) Except as provided in subdivisions (b) and (c), all other discovery shall be stayed until mediation is concluded. If the case is not resolved at the conclusion of mediation, standard discovery procedures prescribed in Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedures shall apply, including an additional deposition of the plaintiff and the defendant and, if the